

Court No. - 37

Case :- WRIT - C No. - 19111 of 2013

Petitioner :- M/S Anurag Pisai Kendra

Respondent :- State Of U.P. Thru Secy. And 2 Others

Petitioner Counsel :- Aditya Kumar Tripathi

Respondent Counsel :- C.S.C.,Amrit Lal Yadav

Hon'ble Sheo Kumar Singh,J.

Hon'ble Sudhir Kumar Saxena,J.

By means of the instant writ petition, petitioner challenges the recovery citation dated 27.2.2013 with respect to electricity dues.

Learned counsel for petitioner submits that petitioner is ready to deposit the amount in instalment if some time is provided to the petitioner. Learned counsel for Power Corporation informs that under Clause 6.14 read with Clause 6.5 of U.P.Electricity Supply Code, 2005, concerned Executive Engineer is empowered to do the same.

In view of the aforesaid statement, petitioner is permitted to pay a sum of Rs. 25,000/- within 15 days from today upon which petitioner may approach the concerned Executive Engineer along with his representation and certified copy of this order. If such application is moved within the stipulated period, the concerned Executive Engineer may adopt liberal approach in settling the dispute of the petitioner.

With the aforesaid observation, writ petition stands disposed of finally.

Order Date :- 10.4.2013

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Court No. - 29

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Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Aditya Kumar Tripathi

Counsel for Respondent :- C.S.C.,Amrit Lal Yadav

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

Shri Baleshwar Chaturvedi, learned Advocate, appeared for the Power Corporation and he has been served copy of the writ petition and modification application today in the Court.

As prayed, list this matter on 23.10.2013 to enable Shri Chaturvedi to obtain instruction and, if so required, he may file counter affidavit.

When the matter is listed next, the name of Shri Baleshwar Chaturvedi be shown as counsel for the respondent in the list.

Order Date :- 8.10.2013

G.S